



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 41ST REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD VIA VIRTUAL REMOTE SESSION (ONLINE PLATFORM) IN DAET, CAMARINES NORTE ON THE 8TH DAY OF NOVEMBER, 2021 AT 9:08 A.M.

PRESENT:

HON. ROSA MIA L. KING

Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT

HON. TOMASITO SANTIAGO C. TURINGAN

HON. APOLONIO B. PANONG

HON. FELIX C. ABAÑO

HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA

HON. NESTOR F. DALIDA

HON. PEDRO S. MUSA-LNB

HON. JUDY ROSE T. GALLARDO-SKMF

ABSENT:

NONE

Resolution No. 349-2021

RESOLUTION ADOPTING AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL USE TO RESIDENTIAL USE OF THE MORE OR LESS FIFTY THOUSAND (50,000) SQUARE METERS LOT UNDER TCT NOS. 079-2019000404, 079-2019001476, 079-2018001688, AND 079-2019001475 REGISTERED IN THE NAME OF SAMUEL T. KHO LOCATED IN BARANGAY CALASGASAN, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 AS SUBDIVISION PROJECT

WHEREAS, pursuant to Section 20 of the Local Government Code of 1991, the municipality through an ordinance passed by the sanggunian after conducting public hearings for the purpose, authorize the reclassification of land within its territorial jurisdiction;

WHEREAS, the Sangguniang Bayan of Daet received a letter from Mr. Wilson P. Kho, General Manager of Family Merchants Projects Development Corporation (FMDC) requesting for reclassification of four (4) parcels of lands in Barangay Calasgasan from agricultural use to residential use and endorsing the same to DHSUD as subdivision project;

WHEREAS, Mr. Domingo Gumabao, official representative of FMDC appeared in the committee hearing on October 21, 2021 and discussed the status of the land based on the submitted documents;

WHEREAS, submitted to this office are the following documents in support to their application:

1. Indorsement from barangay interposing no objection to the reclassification of the land citing thereon that a public hearing was conducted for the purpose and no objection was raised;
2. DAR certification that the land is not covered by the Comprehensive Agrarian Reform Program;
3. NIA certification of non-irrigation coverage;

WHEREAS, Article 38 (b) (2) of the IRR of the Local Government Code provides that the Sangguniang Bayan may reclassify the agricultural lands where the land shall have substantially greater economic value for residential, commercial, or industrial purposes;

WHEREAS, the Sangguniang Bayan found the (4) parcels of land has greater economic value for residential purposes, hence, this ordinance;

WHEREAS, since the CLUP of Daet is for updating, an ordinance reclassifying the land use of the subject property is imperative to avoid delay in the development of the area which will contribute in the economic and social development of the municipality;

NOW THEREFORE, after due deliberation, on motion of Councilor Rossano C. Valencia, with Councilor Felix C. Abaño as co-movant, seconded by Councilors William Carlo R. Avila, Tomasito Santiago C. Turingan, Ma. Eliza H. Llovit, Judy Rose T. Gallardo, Apolonio B. Panong, Pedro S. Musa and Nestor F. Dalida;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 438

AN ORDINANCE AUTHORIZING THE RECLASSIFICATION FROM AGRICULTURAL USE TO RESIDENTIAL USE OF THE MORE OR LESS FIFTY THOUSAND (50,000) SQUARE METERS LOT UNDER TCT NOS. 079-2019000404, 079-2019001476, 079-2018001688, AND 079-2019001475 REGISTERED IN THE NAME OF SAMUEL T. KHO LOCATED IN BARANGAY CALASGASAN, DAET, CAMARINES NORTE AND FAVORABLY ENDORSING THE SAME TO THE DEPARTMENT OF HUMAN SETTLEMENT AND URBAN DEVELOPMENT (DHSUD), REGIONAL OFFICE NO. 5 AS SUBDIVISION PROJECT

BE IT ORDAINED by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. AUTHORITY. It is hereby authorized to reclassify the FIFTY THOUSAND (50,000) SQUARE METERS LOT UNDER TCT NOS. 079-2019000404, 079-2019001476, 079-2018001688, AND 079-2019001475 registered in the name of Samuel T.



Kho, located in Barangay Calasgasan, Daet, Camarines Norte, from agricultural land use to residential land use;

SECTION 2. PURPOSE. The subject land shall be used for residential subdivision purposes, subject to compliance with the standards set by the Department of Human Settlement and Urban Development (DHSUD) and other existing laws.

SECTION 3. REPEALING CLAUSE. All ordinances or any part thereof which are inconsistent with any provision or provisions of this ordinance are hereby repealed or modified accordingly.

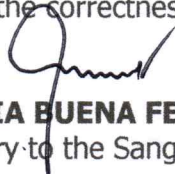
SECTION 4. EFFECTIVITY. This ordinance shall take effect upon its approval and compliance to rules of posting and publication.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof, all others concerned for their information and appropriate action.

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan


COUN. ROSSANO C. VALENCIA
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: NOV 15 2021